

Court No. - 29

Case :- WRIT - C No. - 40730 of 2024

Petitioner :- Arif Ali Khan

Respondent :- State Of Up And 2 Others

Counsel for Petitioner :- Sanjay Kumar Yadav

Counsel for Respondent :- Baleshwar Chaturvedi,C.S.C.

Hon'ble Vivek Kumar Birla,J.

Hon'ble Dr. Gautam Chowdhary,J.

1. Heard Sri Sanjay Kumar Yadav, learned counsel for the petitioner and the learned Standing Counsel appearing for the State-respondents and Sri Baleshwar Chaturvedi, learned counsel appearing for respondent no. 3.

2. The present petition has been filed seeking following relief:-

(i) Issue a writ, order or direction in the nature of certiorari quashing the impugned demand order dated 04.10.2024 of Rs.28,32,114/- against the petitioner (Annexure No.3 to the writ petition) passed by the Executive Engineer, Electricity Distribution Khand Second, Dakhinanchal Vidyut Vitran Nigam Ltd, Mainpuri/Respondent No.3.

(ii) Issue a writ, order or direction in the nature of mandamus commanding the respondents not to take any coercive action against the petitioner in pursuance to the alleged demand order dated 04.10.2024 made by Respondent No.3.

(iii) Issue a writ, order or direction in the nature of mandamus commanding the Respondent No.3 to decide the representation of the petitioner dated 16.11.2024.

3. At the very outset, both the parties agreed that the grievance of the petitioner can be duly redressed with under Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005 and petitioner may be set at liberty to raise his grievance by filing a fresh complaint/representation under the aforesaid authority.

4. Accordingly, the present petition stands **disposed of** with the observation that in case the petitioner file a fresh complaint/representation under Clause 6.5 of the U.P. Electricity Supply Code, 2005 before the respondent no.3-Executive Engineer, Electricity Distribution Khand Second, Dakhinanchal Vidyut Vitran Nigam Ltd, Mainpuri, within 10 days from today.

5. It is provided that in case such remedy is invoked within a period of 10 days from today, the same shall be decided by the respondent no.3 on its own merit or in accordance with the aforesaid provisions.

6. For a period of one month or till disposal of such representation, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of demand order dated 04.10.2024.

7. It is made clear that this Court has not considered the claim of the petitioner on merit.

Order Date :- 9.12.2024

Anurag/-